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Tentative Ruling

Re: ***Pacific Valley Patrol, Inc. v. George Marcus, III***
Superior Court Case No. 25CECG01099

Hearing Date: August 12, 2026 (Dept. 502)

Motion: Default Prove Up

Tentative Ruling:

To deny, without prejudice.

Explanation:

Plaintiff Pacific Valley Patrol, Inc. ("Plaintiff") moves for default judgment against defendants George Marcus III, an individual dba Zack's Market; and Ella P. Marcus, as Trustee of the Marcus Family Revocable Trust ("the Trust") (collectively "Defendants").

As a matter of procedure, Plaintiff fails to request a court judgment, as section 1d on the mandatory CIV-100 Request for Court Judgment form filed April 1, 2026 remains incomplete.

More importantly, Plaintiff fails to adequately prove up the damages requested in the First Amended Complaint. Plaintiff seeks default judgment against both defendants. However, the evidence provided does not support entry of judgment against them.

Plaintiff provides the Declaration of Cristiano Lopes, owner of Pacific Valley Patrol, Inc., along with the first page of the contract at issue. The agreement is made between Plaintiff and George Marcus. An address labeled as "Zack's Market" is identified as the premises receiving security services. Zack's Market is not a party to the contract, and George Marcus is not identified as acting on behalf of Zack's Market. George Marcus is identified in the contract as the legal owner of the premises. (See Lopes Decl., ¶ 2, Exh. 1.)

Mr. Lopes' declaration is insufficient to establish that the Trust is a proper defendant to this action. He states that he "understand[s] the owner of the property is owned by a trust known as 'Marcus Family Revocable Trust dated January 25, 1999.'" It is apparent to me [Mr. Lopes] that Mr. George Marcus III was acting as an agent for the Trust when he entered into this agreement, as the security guard services was for the benefit of the Trust" (Lopes Decl., ¶ 3.) This is mere conjecture. Mr. Lopes attests only as to his "understanding" and the situation as it appears to him, without further evidentiary support.

This statement as to ownership is explicitly contradictory to the terms of the agreement, which state that "The legal owner of this premises is: George Marcus." A Trust Transfer Grant Deed is attached as Exhibit 3 to Mr. Lopes' declaration, but Plaintiff fails to establish that the deed is for the property known as Zack's Market (i.e. does not link the

It is also not clear how Plaintiff is suing George Marcus as “dba” Zack’s Market, as well as the Trust as “owner” of Zack’s Market. This in itself is contradictory.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: img on 8-11-26
(Judge's initials) (Date)